

Court No. - 29

Case :- WRIT - C No. - 39833 of 2018

Petitioner :- Vijay Kumar Agrawal

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- C.S.C.,Abhishek
Srivastava,Kapil Dev Singh Rathore

Hon'ble Pankaj Mithal,J.

Hon'ble Pankaj Bhatia,J.

On the request of learned counsel appearing for the Purvanchal Vidyut Vitran Nigam Ltd., put up this matter day after tomorrow i.e. 6.12.2018 as fresh to enable him to complete his instructions.

Order Date :- 4.12.2018

Puspendra

Court No. - 29

Case :- WRIT - C No. - 39833 of 2018

Petitioner :- Vijay Kumar Agrawal

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Kapil Dev Singh Rathore

Hon'ble Pankaj Mithal,J.

Hon'ble Pankaj Bhatia,J.

The argument is that without deciding the complaint/objections of the petitioner filed under Section 6.5 of the Electricity Supply Code, 2005 straightaway the impugned recovery citation has been issued.

Learned counsel appearing for the respondent No.4 prays for further time to seek instructions.

On his request, put up on Wednesday, i.e., **12.12.2018** in the additional cause list.

In the mean time, till the next date of listing no coercive steps shall be taken against the petitioner.

Order Date :- 6.12.2018

Nitin Verma

Court No. - 29

Case :- WRIT - C No. - 39833 of 2018

Petitioner :- Vijay Kumar Agrawal

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Kapil Dev Singh Rathore

Hon'ble Pankaj Mithal,J.

Hon'ble Pankaj Bhatia,J.

Sri Kapil Dev Singh Rathore, learned counsel appearing for respondent no.4 was granted time on the earlier occasion to seek instruction but he is unable to obtain the necessary instruction. He prays for further time to complete the instructions.

In view of the above, two weeks time is allowed to him for seeking instructions or to file a counter affidavit.

List in the second week of January 2019.

The stay order granted on 6.12.2018 shall remain in operation until further orders of this Court.

Order Date :- 12.12.2018

Hasnain